



KNOXVILLE AREA DSA

Bylaws of the Knoxville Area Chapter of the Democratic Socialists of America

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“The Knoxville Area DSA seeks to facilitate the transition to a truly democratic and socialist society in which the means and resources of production are democratically and socially controlled.”

STATEMENT OF PURPOSE

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Preamble

These bylaws govern the Knoxville Area Chapter of the Democratic Socialists of America (the Chapter, or Knox DSA), a Tennessee nonprofit corporation subordinate to the national documents, which control in any conflict.

Article I. Name, Incorporation, and Defined Terms

Section 1. Names. The legal name of this organization, as incorporated in Tennessee and on file with the Internal Revenue Service, is Knoxville Area DSA. Its formal name is the Knoxville Area Chapter of the Democratic Socialists of America. Its short name is Knox DSA.

Section 2. Incorporation and Tax Status. The Chapter is incorporated under the Tennessee Nonprofit Corporation Act and operates as a tax-exempt organization under Internal Revenue Code section 501(c)(4). The Chapter shall remain in good standing with the State of Tennessee and shall conduct its affairs consistently with its tax-exempt purposes.

Section 3. Registered Agent and Office. The Chapter shall maintain a registered agent and registered office in Tennessee as required by Tennessee Code Annotated section 48-55-101. The obligations of registration, reporting, and timely amendment are governed by the Compliance Code.

Section 4. Defined Terms. In these bylaws:

- (a) "The Chapter" and "Knox DSA" each mean the organization named in Section 1 of this Article.
- (b) "National DSA" means the Democratic Socialists of America, the national organization that chartered the Chapter.
- (c) "The national documents" means the national Constitution and Bylaws, the National DSA Code of Conduct, and any Chapter Agreement or chartering condition binding on the Chapter, however adopted or required by National DSA.
- (d) "Member in good standing" has the meaning given in Article III, Section 2.
- (e) "General Meeting" (Article VI, Section 2), "Annual Convention" (Article VII), "Emergency Meeting" (Article VI, Section 3), "Special Meeting" (Article VI, Section 4), "Steering Committee" (Article V), "Code," "Rule," and "Policy" (Article XVIII, Section 1), and "Artifact" (Article XVIII, Section 8) have the meanings given in the Articles cited.
- (f) "Written notice" means notice given in writing by email or by physical mail, or through another official channel the Steering Committee designates and publishes under the Rule on Official Communication Channels. A member's email address of record is the member's consent to notice

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by email, and a member may withdraw that consent and require notice by physical mail. An informal or ephemeral message, such as a chat post, is not written notice.

(g) “Meeting,” when capitalized, means any General Meeting, Annual Convention, Emergency Meeting, or Special Meeting of the Chapter, and does not include a meeting of the Steering Committee.

(h) “The Unified Grievance Policy” means the DSA Unified Grievance Policy as adopted and amended by National DSA, currently the 2025 edition, or any successor policy.

(i) “Ordinary quorum” means the attendance required to transact ordinary actions under Article VI, Section 5(a). “Higher quorum” means the heightened attendance required under Article VI, Section 5(b) for the heightened actions listed there.

(j) “Majority” or “majority vote” means more than half of those present and voting. “Supermajority” means at least two thirds of those present and voting.

(k) “Heightened action” means an action listed in Article VI, Section 5(b), requiring both the higher quorum and a supermajority. “Ordinary action” means any other action of a Meeting, including an election. An ordinary action requires the ordinary quorum and a majority vote, except that an election is conducted by the method Article IX, Article X, or Article XIII provides, and a procedural motion retains any greater vote the parliamentary authority adopted under Article XIX requires. Any notice period or other condition these bylaws attach to a particular action applies in addition to the quorum and vote its category requires.

(l) “Motion” has the meaning given by Article XVIII, Section 9, which also provides when a motion may be styled a Resolution.

(m) “Signature” means a person’s handwritten signature or the person’s electronic signature, and “sign” and “signed” are read accordingly wherever these bylaws or an instrument under them requires a signature or a signed writing, including a member’s written endorsement of a submission under Article XX, Section 1. An electronic signature is an electronic sound, symbol, or process attached to or logically associated with a record and executed or adopted by the person with the intent to sign the record, including a typed name sent from the member’s email address of record and a signature captured through a signing service the Chapter operates or designates. Where applicable law or a financial institution requires a particular form of signature for a particular document, that requirement controls for that document.

Article II. Purpose and Affiliation

Section 1. Purpose. The Chapter seeks to facilitate the transition to a truly democratic and socialist society in which the means and resources of production are democratically and socially controlled. The Chapter rejects an economic order based solely on private profit, alienated labor, gross inequalities of wealth and power, discrimination based on race, gender identity, sexual

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orientation, disability status, age, religion, and national origin, and brutality and violence in defense of the status quo. The Chapter envisions a humane social order based on popular control of resources and production, economic planning, equitable distribution, feminism, racial equality, and non-oppressive relationships.

Section 2. Affiliation and Subordination. The Chapter is chartered by and subordinate to National DSA. These bylaws and all Chapter governance instruments are subordinate to the national documents, which control in any conflict.

Section 3. National Code of Conduct. The Chapter incorporates by reference the National DSA Code of Conduct as adopted and amended by National DSA, including the DSA Meeting Code of Conduct it incorporates, and the national Code binds all members of the Chapter. Any Chapter Code of Conduct adopted under Article XVIII supplements but does not replace the national Code of Conduct.

Article III. Membership

Section 1. Eligibility. Membership in the Chapter is open to all members in good standing of National DSA who reside in or work in the Chapter's service territory, and to any other member in good standing of National DSA who voluntarily affiliates with the Chapter. The service territory consists of the following sixteen counties of East Tennessee: Anderson, Blount, Campbell, Claiborne, Cocke, Grainger, Hamblen, Jefferson, Knox, Loudon, McMinn, Monroe, Morgan, Roane, Sevier, and Union. The service territory may be revised by membership vote at a General Meeting, consistent with National DSA boundaries and subject to National DSA approval.

Section 2. Members in Good Standing. A member is in good standing if the member is in good standing of National DSA and has not been expelled under Article XII of these bylaws or suspended under that Article from the right in question. A temporary suspension under Article XII, Section 2, and a temporary protective measure under Article XII, Section 4, remove only the rights the imposing motion or measure names, and the member remains in good standing for every other purpose of these bylaws. A member suspended from all membership rights, or from the right to hold Chapter office, is not in good standing for the purposes of Article IV, Section 2, Article XI, Section 9, and Article XIII, Section 3. Voluntary Chapter dues are not a condition of good standing.

Section 3. Member Rights. Members in good standing have the right to attend all Meetings of the Chapter, to participate in deliberations, to make and second motions, to vote on all questions, to nominate and be nominated, to run for any Chapter office, to serve on committees, and to receive notice of all Chapter meetings and elections. The rights to vote in Chapter elections and to hold Chapter office are subject to the eligibility requirements of Articles IV, IX, X, and XIII, and the right to vote on the suspension or expulsion of a member is subject to the thirty-day requirement of Article XII, Section 4.

Section 4. Freedom to Organize. Members and factions may organize for shared political perspectives, may take part in the democratic processes of the Chapter and of National DSA to change their policies and program, may openly critique them, and shall accept majority decisions as legitimate. No Chapter body, officer, Code, Rule, Policy, or motion may suppress, penalize, or disadvantage members for membership in or coordination with a caucus, faction, tendency, or other organization, for organizing internal political tendencies, for open critique of the policies, program, leadership, or decisions of the Chapter or of DSA, for advocacy through democratic means to change them, or for the endorsement of candidates or slates.

Section 5. Voluntary Chapter Dues. The Chapter may request voluntary dues from members. Payment of Chapter dues is not a condition of membership, voting, holding office, or any other right of membership.

Article IV. Officers

Section 1. Officers and Terms. The officers of the Chapter are two Co-Chairs, a Secretary, a Treasurer, and a Steward. Each officer serves a one-year term beginning August 1 and ending the following July 31, or until a successor is elected or appointed.

Section 2. Eligibility. Any member who has been in good standing of National DSA and of the Chapter for at least thirty days before the election may stand for Chapter office. Each officer must remain in good standing throughout the term of office; an officer who ceases to be in good standing and does not cure the lapse within fourteen days vacates the office under Article XI. No member may hold more than one Chapter office at the same time.

Section 3. Service Without Compensation. All officers serve without compensation, subject to reasonable reimbursement of documented Chapter-related expenses under the Financial Controls Code. No part of the Chapter's net earnings shall inure to the benefit of any officer, member, or private individual.

Section 4. The Co-Chairs. The Co-Chairs are the chief executive officers of the Chapter, serve jointly, preside at Meetings of the Chapter and at Steering Committee meetings, and are signatories on Chapter financial accounts under Article XVI. Either Co-Chair may exercise the routine executive authority of the office alone; an act these bylaws expressly reserve to the Co-Chairs acting jointly requires both to concur, and if the Co-Chairs deadlock on such an act, the Steering Committee resolves the question by majority vote. A Co-Chair may not, acting alone, commit the Chapter to any endorsement, coalition partnership, or formal alliance reserved to the membership or the Steering Committee under Article XIV.

Section 5. The Secretary. The Secretary is responsible for the Chapter's governance records, including the minutes of all Meetings and Steering Committee meetings and the registries of current Codes, Rules, and Policies required by Article XVIII, and administers member inspection

of governance and corporate records under the Rule on Records Classification and Public Disclosure. The Secretary certifies in writing the membership count and resulting quorum numbers required by Article VI, drawn from the roster the Steward maintains. The Secretary temporarily assumes the responsibilities of the Co-Chairs if neither Co-Chair is able to act.

Section 6. The Treasurer. The Treasurer is responsible for the funds, financial records, financial reporting, and regulatory filings of the Chapter, and is the primary signatory on Chapter financial accounts under Article XVI.

Section 7. The Steward. The Steward is the Chapter's lead internal organizing officer, responsible for member onboarding, integration, retention, and political education, and maintains the Chapter membership roster in coordination with National DSA consistent with these bylaws, applicable law, and the Rule on Records Classification and Public Disclosure. If the Steward's position is vacant, the Secretary performs the membership records duties until the vacancy is filled.

Section 8. Operating Procedures. The full duties of each officer, and the delegation, continuity-designation, leave-of-absence, attendance, spokesperson, and coalition-liaison mechanics of the offices, are governed by the Rule on Officer Operating Procedures, and the Treasurer's duties also by the Financial Controls Code and the Compliance Code. No such instrument may reduce any duty, power, or accountability established in these bylaws, and none may permit an officer to delegate the core accountability of the office, a signing or certifying duty, including financial signatory authority and the Secretary's written quorum certification, or an officer's vote on any Chapter body.

Section 9. Filing for Public Office. An officer who files for any partisan or nonpartisan public office must resign from Chapter office no later than the close of the filing period for the office sought, unless the membership waives this requirement by heightened action at a General Meeting on fourteen days written notice.

Article V. Steering Committee

Section 1. Composition. The Steering Committee consists of the five elected officers of the Chapter: the two Co-Chairs, the Secretary, the Treasurer, and the Steward, each having one vote. The chairs of all subsidiary bodies under Article VIII, namely Branch chairs, Standing Committee chairs, Working Group chairs, and the Youth Section chair, and the Harassment Grievance Officers, may attend Steering Committee meetings, may speak, and may propose business, but are not voting members. In these bylaws, "officer" refers only to the five elected positions named in this Section.

Section 2. Board of Directors Status. The Steering Committee serves as the Board of Directors of the Chapter for purposes of the Tennessee Nonprofit Corporation Act. Each member of the Steering Committee shall act in obedience to the Chapter's lawful purposes, these bylaws, and

the decisions of the membership, and shall discharge their duties in good faith, with reasonable care, and in the Chapter's best interests.

Section 3. Duties. The Steering Committee administers the affairs of the Chapter between Meetings of the Chapter and implements the decisions of the General Meetings and the Annual Convention, subject to their authority and to the limits in these bylaws. It may take immediate action on urgent matters that cannot wait for the next General Meeting, subject to ratification by the membership at that meeting, with any unratified decision lapsing without prejudice to acts taken in good-faith reliance on it; may propose policy to the membership; may call Emergency Meetings of the Chapter; and adopts, amends, and rescinds Policies under Article XVIII.

Section 4. Meetings. The Steering Committee meets at least monthly at the call of either Co-Chair or at the request of any three of its members, on advance written notice for regular meetings and on shortened notice for a Steering Committee emergency meeting, which is not a meeting of the whole Chapter. The notice periods and further procedure are governed by the Rule on Officer Operating Procedures.

Section 5. Quorum. A quorum of the Steering Committee is a majority of seated Steering Committee members, in no case fewer than three members. No motion may pass without the affirmative vote of a majority of those present and voting.

Section 6. Open Meetings. Steering Committee meetings are open to all members in good standing of the Chapter. The Steering Committee may go into executive session by majority vote to discuss personnel matters, member discipline, pending or threatened litigation, security matters, or other matters where confidentiality is required by law or by clear necessity.

Article VI. Meetings of the Chapter

Section 1. Highest Authority of the Chapter. The General Meetings and the Annual Convention, open to all members in good standing, are the highest authority and the highest decision-making bodies of the Chapter. No body, officer, Rule, or Policy stands above a properly convened General Meeting or Annual Convention. A Code is subordinate to these bylaws and to the membership, but may be adopted, amended, or rescinded only through the heightened two-meeting process in Article XVIII, and may not be suspended or overridden by any vote of a single General Meeting.

Section 2. General Meetings. The Chapter holds General Meetings at least monthly, and they are the principal legislative body of the Chapter between Annual Conventions. The Steering Committee sets the time and place, publishes the schedule, and sets the agenda, which must be communicated to members by written notice at least seven days in advance of each meeting.

(a) **Member Petition for Agenda Items.** Any five members in good standing may, by written notice to the Steering Committee, require that a stated item of business be placed on the

agenda of a General Meeting, and the Steering Committee may not decline to place a properly submitted item on the agenda. The petition shall state the item with enough specificity for members to deliberate and, where the item proposes action, the substance of the motion to be considered. The Steering Committee retains discretion over the ordering and time allotted to agenda items and may consolidate substantially identical petitions. This subsection does not apply to bylaws amendments, which are governed by Article XX. The timing of a petition's placement on a given meeting's agenda is governed by the Rule on Meeting Operating Procedures, which may not authorize the Steering Committee to decline a properly submitted item.

Section 3. Emergency Meetings. An Emergency Meeting is a meeting of the whole Chapter that the Steering Committee calls, on written notice stating the matter, when an urgent and important matter requires the deliberation of the membership before the next scheduled General Meeting, and no business other than the matter stated in the notice may be transacted. An Emergency Meeting is distinct from a Steering Committee emergency meeting under Article V, Section 4, which is not a meeting of the whole Chapter. The notice period and further conduct of an Emergency Meeting are governed by the Rule on Meeting Operating Procedures.

Section 4. Special Meetings. A Special Meeting is a meeting of the whole Chapter, other than a General Meeting, an Emergency Meeting, or the Annual Convention, called to transact specific business that these bylaws authorize to be taken at a Special Meeting, such as filling a vacancy, confirming an interim officer, deciding a member petition for officer removal, or completing a delegate election on the national schedule. A Special Meeting is convened by the person or body, for the purpose, and on the written notice that the provision authorizing it specifies or, where the authorizing provision does not specify a notice period, on the notice set by the Rule on Meeting Operating Procedures. A meeting of members that members are entitled to demand under Tennessee Code Annotated section 48-57-102 is a Special Meeting under this Section, limited to the business stated in the demand. The notice must state the business to be considered, and no business other than the business stated in the notice may be transacted. A session that a General Meeting recesses and reconvenes under Section 5(d)(4) to complete a noticed heightened action is treated as a Special Meeting limited to that business.

Section 5. Quorum.

(a) **Ordinary Actions and Ordinary Quorum.** Every action of a Meeting other than a heightened action listed in subsection (b) is an ordinary action. The quorum to transact ordinary actions at any General Meeting, Emergency Meeting, or Special Meeting of the Chapter is five percent of the Chapter membership, but in no case fewer than six members.

(b) **Heightened Actions and Higher Quorum.** The following actions are the heightened actions of the Chapter. Each requires a supermajority, and the quorum for each is ten percent of the Chapter membership, but in no case fewer than twelve members:

1. Amendment of these bylaws.

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2. Adoption, amendment, or rescission of a Code.
3. Expulsion of a member.
4. Removal of an officer.
5. Removal of a Harassment Grievance Officer.
6. Dissolution of the Chapter.
7. Electoral endorsement of any candidate or ballot measure under Article XIV.
8. Waiver of the public-office filing resignation requirement under Article IV, Section 9.
9. Extension or re-declaration of a declared organizational emergency under Article XV, Section 4.

(c) **Membership Count.** For every quorum percentage in this Section, “the Chapter membership” means the number of members in good standing on the membership roster as most recently reconciled with National DSA, measured as of the first day of the calendar month in which notice of the Meeting is given, as certified in writing by the Secretary under Article IV. The certified count and the resulting ordinary and higher quorum numbers shall be published with the notice of the Meeting. If the Secretary’s position is vacant, the Steward certifies the count, and if both positions are vacant, any other officer certifies the count, and if no officer is in office, the members convening the Meeting certify it.

(d) **Measurement.** Quorum shall be measured at the call to order of each Meeting. Once quorum is met, business may continue notwithstanding subsequent departures, except that:

1. No motion may pass without the affirmative vote of a majority of those present and voting at the time of the vote.
2. No motion requiring the higher quorum may pass if attendance has fallen below the higher quorum threshold at the time of the vote.
3. If attendance falls below the ordinary quorum minimum of six members, no further substantive motion may be adopted, though the Meeting may still recess, adjourn, fix the time of the next Meeting, or take other procedural action.
4. If a Meeting properly convened with the higher quorum has begun consideration of a noticed heightened action and attendance falls below the higher quorum before the vote, the Meeting may, by majority vote of those present, recess and reconvene to complete only that noticed business at a fixed date and time not more than fourteen days later, on announcement of the date, time, and place at the recess and reasonable written notice to the membership. The reconvened session is a Special Meeting under Section 4, and the higher quorum must be present at it to act.

Section 6. Voting and Remote Participation.

(a) **One Vote; No Proxy.** Each member in good standing present at a Meeting, whether present in person or by remote participation under subsection (b), has one vote. Proxy voting is not permitted.

(b) **Hybrid Participation and Electronic Voting by Right.** Every Meeting of the Chapter shall be conducted as a hybrid meeting that offers remote participation by right. The Chapter shall provide a remote channel through which a member in good standing who does not attend in person may join the meeting, be identified, be heard, and have the member's presence counted toward quorum and the member's vote counted on every question. A member present by permitted remote participation is present at the Meeting for all purposes of these bylaws, including quorum and voting, and votes by electronic means on the same questions, by the same recorded method, and with the same effect as a member present in person. Remote participation and electronic voting are a guaranteed floor that the Steering Committee may not condition, narrow, or withhold; this subsection binds the Steering Committee.

(c) **Reasonable Accommodations.** The Chapter provides reasonable accommodations to support members' full participation in Meetings, as governed by the Rule on Meeting Accessibility and Accommodations.

(d) **Procedures.** The procedures for verifying the identity of remote members, recognizing remote members to be heard, counting remote presence and votes, and restoring an interrupted remote channel are governed by the Rule on Officer Operating Procedures, provided that no such procedure may convert the right under subsection (b) into discretionary access.

Article VII. Annual Convention

Section 1. Annual Convention Required. The Chapter holds an Annual Convention each July. The Annual Convention is a General Meeting for purposes of these bylaws.

Section 2. Date and Notice. The Steering Committee shall set the date and place of the Annual Convention at least sixty days in advance. The Secretary shall communicate the date, place, and proposed agenda to all members by written notice at least thirty days in advance.

Section 3. Required Business. The Annual Convention shall elect the five officers of the Chapter under Article IX, elect Harassment Grievance Officers under Article XIII, consider and vote on any bylaws amendments scheduled for the Annual Convention under Article XX, and receive reports from the Co-Chairs, the Secretary, the Treasurer, the Steward, the Harassment Grievance Officers, and the chair of each subsidiary body, including the Treasurer's financial report for the fiscal year to date.

Section 4. National Convention Delegate Elections. In years in which the National Convention will be held, the Annual Convention shall also elect the Chapter's delegates and alternates under Article X. If the schedule required by National DSA does not permit those elections to be completed at the Annual Convention, the Steering Committee shall call a Special Meeting for delegate elections, on the required schedule and consistent with Article X.

Section 5. Quorum. The Annual Convention is convened at the ordinary quorum under Article VI, Section 5(a), measured at the call to order, and proceeds at that quorum to the election of officers and Harassment Grievance Officers and to any other ordinary action within its authority. A heightened action, including amendment of these bylaws, may be taken at the Annual Convention only if the higher quorum is present at the time of the vote.

Section 6. Voting and Credentials. Contested elections at the Annual Convention shall be conducted by secret ballot, and other matters are decided under the parliamentary authority adopted in Article XIX. The Secretary, in coordination with the Steward, shall verify that all voters are members in good standing of National DSA and of the Chapter as of the day of the Annual Convention, and that every voter in an election held at the Annual Convention meets the thirty-day eligibility requirement of Article IX, Section 9. The conduct of votes at the Annual Convention, including a member's right to demand a division of the assembly or a roll call vote, is governed by the Rule on Annual Convention Procedures.

Section 7. Operating Procedures. The detailed conduct of the Annual Convention is governed by the Rule on Annual Convention Procedures.

Article VIII. Branches, Standing Committees, Working Groups, and the Youth Section

Section 1. Formation and Purpose. The Chapter organizes its members through subsidiary bodies, each of which advances the Chapter's purposes, carries out its own work within the limits in Section 2, and reports to the membership through its chair. A Branch organizes members within a geographic sub-area of the service territory. A Standing Committee organizes members around an ongoing issue or functional area of the Chapter's work, such as an issue campaign, mutual aid, political education, or an internal operating function. A Working Group organizes members around a specific, time-limited project and concludes when the project is complete. A Youth Section organizes student and young members and coordinates with chartered YDSA chapters within the service territory; it is permissive and self-existing under Section 4(b) and is not mandated. The meeting conduct, openness, and minimum-cadence requirements of each subsidiary body type are governed by the Rule on Subsidiary Body Operating Procedures.

Section 2. Hard Limits on All Subsidiary Bodies. No Branch, Standing Committee, Working Group, or Youth Section may: (a) endorse any candidate, ballot measure, coalition, or labor action (Article XIV reserves those decisions to the membership and the Steering Committee); (b) commit Chapter funds beyond a budget approved by the Steering Committee or the membership; (c) adopt rules, procedures, or standards purporting to bind the Chapter or its members outside the governance hierarchy in Article XVIII; or (d) represent itself as speaking for the Chapter as a whole.

Section 3. Subsidiary Body Chairs. A subsidiary body chair's primary accountability is to the chair's body and to the membership through reports at General Meetings.

Section 4. Inactivity Lapse and Dissolution. A subsidiary body may lapse for inactivity and may be dissolved by the membership, on the principles in this Section. The detailed mechanics are governed by the Rule on Subsidiary Body Operating Procedures, which may not reduce the notice-and-cure requirement or the funds-and-records disposition stated here.

(a) **Lapse for Inactivity.** A Standing Committee, Working Group, or Branch that becomes inactive may lapse by a rebuttable administrative finding of the Steward or the Secretary, effective only after written notice to the body's members and a cure window in which the body may resume activity or show that it remains active. The inactivity periods, the cure-window timing, and the meaning of inactivity for asynchronous and online organizing are governed by the Rule on Subsidiary Body Operating Procedures.

(b) **The Youth Section.** The Youth Section is not mandated and is exempt from lapse and from dissolution by vote. It exists whenever eligible members organize and elect a chair, is dormant when they do not, and reactivates without re-chartering.

(c) **Membership Dissolution and Disposition.** The membership may dissolve any Standing Committee, Working Group, or Branch at any time by majority vote on a noticed agenda item, with written notice to the body's members and an opportunity to be heard, without a Steering Committee recommendation. On lapse, dissolution, or dormancy, the body's funds revert to the Chapter general fund and its records pass to the Secretary, both returning on a Youth Section's reactivation, and members affiliated with the body remain full members of the Chapter.

Section 5. Operating Procedures. Formation requirements, minimum membership thresholds, internal governance, funding, and reporting obligations for each subsidiary body type are governed by the Rule on Subsidiary Body Operating Procedures.

Article IX. Elections and Nominations

Section 1. Annual Officer Elections. All five officer positions are elected annually at the Annual Convention under Article VII. Each officer is elected by majority vote where a single seat is filled, or, where the two Co-Chair seats are filled at the same election, by the method the Code on Election Procedures prescribes for multi-seat elections.

Section 2. Harassment Grievance Officer Elections. Harassment Grievance Officers are elected by the membership under Article XIII. The conduct rules in this Article apply to those elections.

Section 3. Nomination Period. Nominations for each regular annual election to a Chapter position, including Harassment Grievance Officer, open thirty days before the election and close five days before, and members may nominate themselves. The manner of making, submitting, and publishing nominations is governed by the Code on Election Procedures.

Section 4. Election Conduct. No candidate may administer their own election. Contested elections are conducted by secret ballot. An uncontested position is filled by acclamation.

Section 5. Majority in Ranked Elections. Where these bylaws require election by majority vote and a contested election is conducted by ranked ballot, a candidate who receives a majority of continuing ballots in the final round is elected by majority vote within the meaning of these bylaws. An exhausted ballot is not counted in that round.

Section 6. Unfilled Positions. An officer or Harassment Grievance Officer position that receives no candidate during the nomination period is opened for floor nominations at the Annual Convention before adjournment. An officer position still unfilled at the close of the Convention is a vacancy arising August 1, filled under Article XI, except that an incumbent whose term is ending holds over under Article IV, Section 1 until the interim officer takes office or the seat is otherwise filled, so the office is not left uncovered. A held-over seat is a vacancy for the filling, notice, and reporting duties of Article XI, but is not counted as vacant under Article XI, Section 1 or Section 6, or for any officer-vacancy emergency trigger, while the holdover continues. A Harassment Grievance Officer seat still unfilled is filled under Article XIII, Section 4.

Section 7. First Election of a New or Modified Position. Notwithstanding the nomination window in Section 3, when an elected position is newly created, renamed, or modified by amendment of these bylaws or by other action of the membership, nominations for the first election to that position may be made from the floor at the meeting where the position takes effect. The conduct of that first election is otherwise governed by the Code on Election Procedures, and subsequent elections follow the ordinary nomination window.

Section 8. Detailed Procedures. All Chapter elections, including officer, Harassment Grievance Officer, and delegate elections, are administered under the Code on Election Procedures. Where National DSA provides or requires a national service or system for the conduct of officer or delegate elections, the Chapter uses it, on the terms the Code on Election Procedures provides.

Section 9. Voter Eligibility. Only a member who has been in good standing for at least thirty days before the day of the election may vote in an election for Chapter office or Harassment Grievance Officer, or in a delegate election under Article X. This requirement governs elections only and does not apply to votes on motions or other questions at a Meeting of the Chapter. The Code on Election Procedures governs the credentialing consistent with this Section and may not reduce this thirty-day requirement.

Article X. Delegates to National, Regional, and State Bodies

Section 1. Delegate Election Requirement. In each year the National Convention is held, the Chapter shall elect its apportioned delegates and alternates to the National Convention by direct election of the membership.

Section 2. Eligibility and Apportionment. Any member in good standing of both National DSA and the Chapter as of the day of the election may stand for delegate or alternate. The number of delegates and alternates is set by the National Political Committee under the national Constitution and Bylaws.

Section 3. Conduct. No candidate may administer their own election. Delegate elections are conducted by secret ballot using the method required by the national Constitution and Bylaws.

Section 4. State and Regional Bodies. Elections for delegates to any State or Regional body of which the Chapter is a member follow the procedures in this Article and any additional requirements in the Code on Election Procedures.

Section 5. Detailed Procedures. The timing and scheduling of delegate elections, the order in which alternates serve, and all further mechanics, including the counting procedure, tie-break rules, and any technology used, are governed by the Code on Election Procedures.

Article XI. Vacancies and Officer Removal

Section 1. Co-Chair Auto Succession. If a vacancy occurs in one of the Co-Chair positions, the remaining Co-Chair continues to serve with all the authority of both Co-Chairs until the vacancy is filled, and may exercise alone any act these bylaws reserve to the Co-Chairs acting jointly.

Section 2. Notice of Vacancy. The Secretary shall provide written notice to the full membership of any officer vacancy within seven days, identifying the vacant office and the cause and date of the vacancy. If the Secretary's position is vacant, any other officer shall provide the notice. The Secretary shall report every officer election result, appointment, resignation, and removal to National DSA within thirty days of the election or change, as the Compliance Code provides. Detail is governed by the Rule on Officer Operating Procedures.

Section 3. Interim Appointment. Upon any officer vacancy, the Steering Committee shall appoint an interim officer from members who meet the officer eligibility requirements of Article IV, Section 2, measured as of the appointment, by majority vote if it has a quorum or, if it does not, by the remaining officer or officers acting jointly. The interim officer assumes the duties and authority of the office immediately and serves until the confirmation vote under Section 4. The appointment shall be made within fourteen days of the vacancy; if it is not, any five members in good standing may, by written notice to the Secretary or any other officer, require a Special Meeting to fill the vacancy by direct election, to be convened by those members on at least seven days written notice to the membership. Mechanics are governed by the Rule on Officer Operating Procedures.

Section 4. Membership Confirmation. Every interim appointment must be confirmed by majority vote of the membership, at a General Meeting on at least seven days written notice identifying the interim officer and the confirmation question or, if no such meeting is scheduled, at a

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Special Meeting convened by the Steering Committee on the same notice, in no case later than forty-five days after the appointment. If the membership confirms, the interim becomes the elected officer for the remainder of the term. If the membership denies confirmation, the interim's service ends at the close of that meeting, and the membership shall fill the office by floor election at the same meeting or by a scheduled special election. Remote participation and electronic voting are available by right at any meeting held under this Section, under Article VI. Detail is governed by the Rule on Officer Operating Procedures.

Section 5. Vacancies Near the Annual Convention. If a vacancy occurs within forty-five days before the Annual Convention, the interim appointment continues until the end of the term, and the position is filled at the regular annual election rather than by a separate confirmation vote.

Section 6. Loss of All Officers. If all five officer positions are vacant simultaneously, any five members in good standing may convene a Special Meeting on seven days written notice to declare an organizational emergency under Article XV, appoint interim officers under Section 3, and schedule confirmation votes under Section 4. If no such meeting is convened within sixty days, the Chapter shall be considered non-functioning, and any member in good standing may notify National DSA on the Chapter's behalf.

Section 7. Officer Removal. Any officer may be removed for cause by heightened action at a General Meeting, on twenty-one days written notice to the membership and to the officer. The notice must state the grounds, which include nonfeasance, malfeasance, gross violation of these bylaws, breach of fiduciary duty, or concrete material harm to the Chapter's interests. Removal may not be based on a good-faith political or programmatic disagreement, or on any position or advocacy protected under Article III. The officer must have an opportunity to respond in writing before the meeting and to be heard in person at the meeting.

Section 8. Member Petition for Removal. On the written petition of twenty members in good standing, or ten percent of the Chapter membership as most recently certified under Article VI, Section 5(c), whichever is fewer, stating the officer and the grounds, the Secretary shall place the removal question before the membership, at a General Meeting scheduled within forty-five days of receipt of the petition or otherwise at a Special Meeting, on the notice required by Section 7. If the Secretary's position is vacant or the Secretary is the named officer, the petition may be submitted to any other officer. A removal under this Section requires the same heightened action, notice, and opportunity to respond and be heard set in Section 7. The Steering Committee may not block, delay, or remove the removal question from the agenda once a valid petition is received.

Section 9. Vacancy on Loss of Good Standing. An officer who ceases to be in good standing of National DSA or of the Chapter, and who does not restore good standing within fourteen days, thereby vacates the office. The Secretary provides the notice of vacancy under Section 2, and the vacancy is filled under this Article. This Section operates automatically and is not a removal for cause under Section 7 or Section 8.

Article XII. Discipline of Members

Section 1. Grounds. A member may be disciplined for conduct that violates the Chapter Code of Conduct, the National DSA Code of Conduct, or these bylaws, or that endangers the safety or integrity of the Chapter. A member may be expelled only on one of two grounds, and on no other: (a) the **political ground**, substantial disagreement with the principles or policies of DSA, expulsion on which is a political expulsion decided by the membership and appealable under the political route in Section 5; or (b) the **conduct ground**, consistently engaging in undemocratic, disruptive behavior, expulsion on which, with all other discipline, is conduct-based and appealable under the conduct route in Section 5. A political ground may not be recharacterized as a conduct ground to convert a political expulsion into a conduct expulsion. No ground reaches membership in or coordination with a caucus, faction, tendency, or other organization, open critique of the policies, program, leadership, or decisions of the Chapter or of DSA, advocacy through democratic means to change them, or the endorsement of candidates or slates, all of which are protected under Article III. The application of these grounds, including the evidentiary treatment of a member's adherence to democratic-centralist discipline, is governed by the Discipline Code and the Unified Grievance Policy.

Section 2. Range of Discipline. The Chapter may impose, in increasing order of severity, a formal warning, mediation, required training, temporary suspension of any or all membership rights for up to one year, or expulsion from the Chapter. The Discipline Code specifies the mechanics and limits of each penalty consistent with this Article.

Section 3. Due Process Floor. No member may be suspended or expelled without all of the following protections, which are the minimum required and may not be reduced by any Code, Rule, Policy, or vote of any Chapter body:

(a) **Written Notice.** Written notice of the proposed discipline at least twenty-one days before the meeting at which it will be considered, stating the specific charges, the conduct alleged, the rule or standard alleged to have been violated, and the proposed discipline.

(b) **Disclosure of Evidence.** Copies of all evidence to be considered against the member, delivered with the notice, to the extent and in the form the Unified Grievance Policy requires, provided the member still receives enough of the substance of the evidence to respond to it.

(c) **Right to Respond.** The right to submit a written response distributed to the deciding body before the meeting, and to appear in person or by remote participation under Article VI, Section 6(b) and make a statement in the member's own defense.

(d) **Right to Appear and Be Heard.** The right to appear and be heard as provided in subsection (c), to call witnesses on the member's behalf, and to be accompanied by an advisor of the member's choosing.

(e) **Written Decision.** A written decision stating the discipline imposed, if any, the grounds, and the evidence relied upon, within fourteen days of the deciding meeting.

(f) **Right of Appeal.** The right of appeal provided in Section 5.

For lesser discipline, proportionate notice and an opportunity to be heard are required, as specified in the Discipline Code.

Section 4. Authority and Thresholds. The Steering Committee may impose only a formal warning, mediation, or required training, and may not suspend or expel a member except by a temporary protective measure authorized by the Unified Grievance Policy on written notice to the member and subject to the member's appeal of right; the duration and other limits of a protective measure are set by that Policy and the Discipline Code, and such a measure is a protective interim step, not discipline, and is not a suspension within the meaning of Section 3. Temporary suspension may be imposed only by the membership, by ordinary action under Article VI; expulsion only by the membership, by heightened action under Article VI; each on twenty-one days written notice and with all of the protections of Section 3. Only a member who has been in good standing for at least thirty days before the meeting may vote to suspend or expel a member. A member of the Steering Committee who is a complainant or respondent, or otherwise conflicted under the Conflict of Interest Code, shall recuse, and if too few non-conflicted members remain to act, the matter is escalated to the membership for decision with all of the protections of Section 3.

Section 5. Grievances and Appeals. Grievance, harassment, and conduct complaints are processed under the Unified Grievance Policy, which governs intake, investigation, procedure, and the routes and mechanics of appeal. No minimum period of membership is required to file or to take part in a grievance. Every disciplined member, and the complaining member and the responsible Harassment Grievance Officer, retain the appeal rights that Policy provides: a conduct expulsion or other grievance discipline is appealable to the National Political Committee and then, to the extent the applicable national process provides, to the National Convention under Article III, Section 4 of the national Constitution; a political expulsion is decided by the membership and appealable on the same national route, with no Harassment Grievance Officer or national grievance body adjudicating it in the first instance. Where a suspension or expulsion follows a grievance, the Steering Committee makes the written adjudication that Policy reserves to it and the membership decides the penalty under Section 4 on a finding by a preponderance of the evidence; the membership deliberates grievance facts in closed session and takes the penalty vote by recorded vote entered by name in the minutes. Pending any appeal the discipline remains in effect unless the deciding body or the National Political Committee orders otherwise, except that a suspension does not bar the member from attending the meeting at which the member's own appeal is heard to the extent necessary to exercise the right to be heard under Section 3(c). The Discipline Code and the Unified Grievance Policy specify the remaining appeal mechanics.

Article XIII. Harassment Grievance Officers

Section 1. Authority and Compliance. The office of Harassment Grievance Officer exists in compliance with the Unified Grievance Policy, which this Article implements. This Article shall be interpreted consistent with that Policy as amended by future National Conventions, and in any conflict the national policy controls.

Section 2. Number. The Chapter shall maintain at least one Harassment Grievance Officer at all times, and at least two at all times if the Chapter has more than one hundred members on the certified count under Article VI. The membership may by majority vote at a General Meeting increase the required number above this minimum.

Section 3. Eligibility, Independence, and Recusal. Any member who has been in good standing of the Chapter and of National DSA for at least thirty days before the election or appointment may serve as a Harassment Grievance Officer. A Harassment Grievance Officer may not simultaneously serve as an elected officer; a person holding both positions must resign one within fourteen days. A Harassment Grievance Officer who handled the intake or investigation of a grievance shall not decide the disciplinary disposition of that grievance. A Harassment Grievance Officer must remain in good standing throughout the term; one who ceases to be in good standing and does not cure the lapse within fourteen days vacates the role, and the vacancy is filled under Section 4.

Section 4. Election, Term, and Vacancy. Harassment Grievance Officers are elected by the membership at the Annual Convention under Article IX and the Code on Election Procedures, and each serves a one-year term beginning August 1, or until a successor is elected or appointed. A mid-term vacancy is filled by majority vote of the Steering Committee, which appoints an Acting Harassment Grievance Officer until a special election at the next General Meeting, whose notice shall state the vacancy and the special election. The term-limit, ballot-method, and special-election nomination mechanics are governed by the Code on Election Procedures.

Section 5. Removal for Cause. A Harassment Grievance Officer may be removed for cause, including breach of confidentiality, retaliation, conflict of interest, or serious failure to carry out the duties of the role, by heightened action at a General Meeting on twenty-one days written notice, with the due process protections of Article XII, Section 3, other than the right of appeal in subsection (f); the membership's removal decision is final within the Chapter, subject to any review the Unified Grievance Policy provides. Upon a credible allegation warranting immediate action, the Steering Committee may by a supermajority suspend a Harassment Grievance Officer from intake of new grievances pending the removal proceeding, and the suspension lapses if the removal meeting is not noticed within thirty days.

Section 6. Procedure and Operations. All grievance intake, investigation, confidentiality, recordkeeping, and decision procedures are governed by the Unified Grievance Policy and the Rule on Harassment Grievance Officer Operations; no operational document may reduce the structural protections in this Article. If the Chapter cannot fill the minimum number of Harassment Grievance Officers required by Section 2 after a good-faith effort, the Steering Committee shall notify National DSA in writing within fourteen days and continue to recruit, and the Chapter's disciplinary functions continue during any period of vacancy, as further provided in that Rule.

Section 7. Appeals. All grievance decisions are subject to the appeal rights in the Unified Grievance Policy, on the routes stated in Article XII, Section 5.

Article XIV. Endorsements

Section 1. Electoral Endorsements Reserved to the Membership. An electoral endorsement, meaning support for or opposition to a candidate for any public office or a ballot measure, is a heightened action, taken at a General Meeting on fourteen days written notice to the membership stating the proposed endorsement. A solidarity or coalition action that functions as support for or opposition to a candidate for public office is an electoral endorsement governed by this Section, regardless of how it is labeled.

Section 2. Solidarity and Coalition Actions. The Steering Committee may authorize a solidarity or coalition action, meaning formal coalition membership or formal support of a labor action, between Meetings of the Chapter. The membership retains supreme authority over such actions and may, by ordinary action, rescind, amend, direct, or itself authorize any of them.

Section 3. No Unilateral Officer Commitment. No officer, acting alone, may commit the Chapter to any endorsement, solidarity action, or coalition action.

Section 4. Operating Procedures. Definitions, submission, notice, the information session, the conduct and rescission of an endorsement vote, Steering Committee reporting of authorized solidarity and coalition actions, and endorsement records are governed by the Rule on Endorsement Procedures.

Article XV. Emergencies

Section 1. Declaration. The Co-Chairs jointly may declare an organizational emergency in response to a natural disaster, public health emergency, civil disturbance, a sustained failure of the Steering Committee to reach its quorum, three or more simultaneous officer vacancies, or a formal National DSA investigation of the Chapter. If the Co-Chairs deadlock, the Steering Committee resolves the question under Article IV, Section 4; if fewer than two Co-Chairs are in

office, any remaining officer may declare. The declaration must be in writing, must state the triggering condition, and must be communicated to the membership within forty-eight hours. The declaration mechanics are governed by the Rule on Emergencies.

Section 2. Emergency Powers. During a declared emergency, the Steering Committee may conduct its business by electronic means without the notice requirements of Article V, Section 4, may take protective action to safeguard members, records, and resources, and may make operational decisions normally reserved to the General Meeting that cannot be deferred without concrete and serious harm, with each such decision documented in writing and submitted for ratification at the next General Meeting, and any unratified decision lapsing without prejudice to acts taken in good-faith reliance on it.

Section 3. Emergency Limits. The Steering Committee may not, even during a declared emergency, expel any member, remove any officer, amend these bylaws, adopt, amend, or rescind any Code or Rule, endorse any candidate, ballot measure, coalition, or labor action, take any new public political position, or make material changes to the governance structure of the Chapter.

Section 4. Sunset. A declared emergency automatically expires ninety days after declaration unless extended by the membership by heightened action at a General Meeting, and the membership may terminate any declared emergency before then by ordinary action. On termination or expiration, all emergency powers end immediately. After an emergency expires or is terminated, no new emergency may be declared on the same or substantially the same triggering condition except by the membership, by heightened action at a General Meeting, on the same notice required for an extension; a fresh declaration requires a new or materially changed triggering condition. A declared emergency is distinct from and may not be used to circumvent the vacancy procedures under Article XI. The extension, termination, re-declaration, and ratification procedures are governed by the Rule on Emergencies.

Article XVI. Financial Management

Section 1. Signatories. The Treasurer and both Co-Chairs are authorized signatories on all Chapter financial accounts. The Treasurer is the primary signatory, and each Co-Chair may sign in the Treasurer's absence. All Chapter funds shall be held in accounts in the Chapter's name under the Chapter's federal tax identification number. The fiscal year of the Chapter is the calendar year. Signatory transitions, temporary emergency signatories, and petty-cash controls are governed by the Financial Controls Code.

Section 2. Expenditure Authority. The Treasurer may authorize routine expenditures up to a threshold set by the Financial Controls Code, and the Steering Committee may authorize nonrecurring expenditures up to a higher threshold set by that Code. Any expenditure above the Steering Committee threshold, and any nonrecurring expenditure of unusual character, requires

approval at a General Meeting. Any direct disbursement to a natural person, such as payroll or a contractor or vendor payment, not provided for in a budget or campaign plan adopted by the membership requires approval at a General Meeting, regardless of amount.

Section 3. Annual Budget. The Treasurer shall present a proposed annual budget at the last General Meeting of the calendar year, and the membership adopts it by majority vote to take effect on January 1. The Treasurer shall distribute the proposed budget to all members with the notice of the meeting at which it will be adopted, and shall distribute the adopted budget to all members within fourteen days of adoption. If no budget is adopted before the fiscal year begins, the most recently adopted budget remains in effect until the membership adopts a new one.

Section 4. Member Financial Rights. Upon the written demand of any member, the Treasurer shall furnish to that member the Chapter's latest annual financial statements in the form and within the time required by the Tennessee Nonprofit Corporation Act. No Code or Rule may reduce the member entitlement established by this Section or by statute.

Section 5. Financial Controls. Dollar thresholds, dual-signature requirements, reconciliation cadence, reimbursement procedures, budget-variance authority, financial-statement deadlines and delivery, and the compliance calendar of required filings are governed by the Financial Controls Code and the Compliance Code.

Article XVII. Indemnification and Corporate Compliance

Section 1. Indemnification. The Chapter shall indemnify its officers, Harassment Grievance Officers, and members acting in their official or member capacity in good faith to the fullest extent permitted or required by Tennessee law. The Chapter may purchase liability insurance to support this obligation. The limits on indemnification and the insurance program are governed by the Compliance Code.

Section 2. Inurement Bar. No part of the Chapter's net earnings shall inure to the benefit of any private shareholder or individual, including any officer, member, or other insider. The Chapter shall not engage in any activity prohibited to organizations exempt under Internal Revenue Code section 501(c)(4), nor in any activity prohibited by resolutions of the National Convention or the National Political Committee, and shall conduct its activities in full compliance with all applicable law and with all policies of National DSA.

Section 3. Governance by Code and Rule. Primary-purpose tracking, conflict of interest, whistleblower protection and anti-retaliation, document retention and disposition, digital security, government-records handling, member inspection of records, and the classification and public disclosure of Chapter records are governed by the Compliance Code, the respective Conflict of Interest, Whistleblower, Document Retention, and Information Security Codes, and the Rule on Records Classification and Public Disclosure. The Chapter honors the records-inspection

and copying rights that applicable law affords to members, and no Code, Rule, or Policy may reduce any inspection right fixed by these bylaws or by statute. Member home addresses, and the identities and contact information of members and other persons on event sign-in and attendance records, are protected: no Code, Rule, or Policy may authorize their disclosure except as the law requires or the affected person consents.

Article XVIII. Governance Hierarchy

Section 1. Four Binding Tiers. The Chapter operates under a four-tier hierarchy of binding governance documents:

(a) **Tier 1: Bylaws.** The fundamental governing law of the Chapter, amended only under Article XX and only by heightened action.

(b) **Tier 2: Codes.** Codes are the Chapter's entrenched, foundational frameworks: the law that protects member rights, due process, elections, finances, records, and compliance, and that the Chapter intends not to change easily. A Code is adopted, amended, or rescinded over two consecutive General Meetings. A General Meeting that is cancelled is disregarded for the purpose of consecutiveness and, in locating the second meeting, so is a General Meeting that does not reach the higher quorum, as under Article XX, Section 3. The first meeting introduces and debates the proposed Code or amendment, may amend it by germane floor amendment, and advances it to the second meeting by ordinary action, on fourteen days written notice to the membership. The second meeting, on fourteen days written notice, takes the final vote, which is the adopting action and a heightened action under Article VI, Section 5(b). The text voted at the second meeting must be identical to the text as it stood at the close of the first meeting, and the floor-amendment, germaneness, and identical-text rules of Article XX, Section 7 apply to this two-meeting process: a germane floor amendment to the proposal is permitted only at the first meeting, and the second meeting votes the resulting text up or down without further amendment.

(c) **Tier 3: Rules.** The Chapter's ordinary operational law, the day-to-day procedures and standards the general membership adjusts as needed, adopted, amended, and rescinded by majority vote at any General Meeting on seven days written notice to the membership.

(d) **Tier 4: Policies.** Administrative procedures of the Steering Committee, adopted, amended, and rescinded by majority vote of the Steering Committee, subject to membership override. The general membership may rescind any Policy, or direct the Steering Committee to amend any Policy, by majority vote at any General Meeting on seven days written notice. A Policy rescinded by the membership may not be reissued in substantially similar form within twelve months unless the membership authorizes the reissue.

Section 2. Supremacy. Every tier is subordinate to the national documents, which control in any conflict under Article II, Section 2. In any conflict between tiers, the higher tier controls, and a document at any tier that conflicts with a higher-tier document is void to the extent of the conflict. The remainder of any partially void document survives if it can stand independently. Where two documents at the same tier conflict, the later adopted document controls to the extent of the conflict.

Section 3. Exclusive Rulemaking Authority. No committee, working group, branch, officer, or other body may adopt any rule, procedure, or standard purporting to bind the Chapter or its members outside this four-tier hierarchy. Internal documents adopted outside this hierarchy are advisory only and bind no one. The Steering Committee may not by Policy override or modify any provision of this Article, and this Article may be amended only under Article XX. Below the four binding tiers sits the non-binding Artifact level, defined in Section 8. Acts of the Chapter and its bodies by motion are governed by Section 9.

Section 4. Reserved Subjects.

(a) **Codes.** The following subjects may be addressed only by Code, never by Rule or Policy: the Chapter Code of Conduct, stating the standards of member conduct; the Discipline Code, governing the procedures and penalties for member discipline; the Whistleblower Code, protecting members who report misconduct from retaliation; the Conflict of Interest Code, governing the identification and management of conflicts of interest; the Information Security Code, governing digital security and the handling of government records; the Compliance Code, governing the Chapter's legal, tax, and National-reporting obligations and the compliance calendar; the Code on Election Procedures, governing the conduct of all Chapter elections, including the Scottish Single Transferable Vote method for delegate elections required by National DSA; the Financial Controls Code, governing expenditure controls and financial procedures; and the Document Retention Code, governing the retention and disposition of Chapter records. The membership may, by the procedure to adopt a Code, designate any other subject as requiring a Code, or remove that designation.

(b) **Rules.** The following subjects shall be addressed by Rule, and may not be addressed by Policy: Annual Convention Procedures, governing the detailed conduct of the Annual Convention; Endorsement Procedures, governing the process for endorsements and solidarity and coalition actions; Officer Operating Procedures, governing the day-to-day operation of the offices; Subsidiary Body Operating Procedures, governing the formation, operation, and dissolution of subsidiary bodies; Meeting Accessibility and Accommodations, governing accessibility and participation support for Meetings; Harassment Grievance Officer Operations, governing the operational procedures of the Harassment Grievance Officers; Records Classification and Public Disclosure, governing the classification, disclosure, and member inspection of Chapter records and the handling of the statutory members' list; and any other subject these bylaws reserve to Rule.

Section 5. Registries and Member Access. The Secretary shall maintain public registries of all current Codes, Rules, and Policies, each identifying every document by number, title, date of adoption, and date of last amendment. Members in good standing may request the full text of any listed document. The Steering Committee shall bring to the membership for correction any Code, Rule, or Policy known or suspected to conflict with a higher tier, any member in good standing may raise a claim of conflict at any General Meeting, and the membership decides claims of conflict by majority vote.

Section 6. Tier Selection Guidance. The Steering Committee shall maintain a Policy on Tier Selection providing advisory guidance on the tier to which a given subject belongs. The Policy on Tier Selection is advisory only. The membership retains ultimate authority over tier placement, and any member in good standing may challenge tier placement at any General Meeting under the conflict procedure in Section 5.

Section 7. Savings and Anti-Rescission. Until a Code or Rule that these bylaws require has been adopted, and during any period in which such an instrument is rescinded, void, or otherwise not in effect, existing Chapter practice on the subject continues in effect, and the Steering Committee may act by Policy to fill the gap. No such interim measure may reduce a right, threshold, quorum, or protection fixed in these bylaws. A reserved Code or Rule may not be rescinded unless a replacement on the same subject is adopted at the same meeting. The Code on Election Procedures, the Financial Controls Code, the Rule on Records Classification and Public Disclosure, the Chapter Code of Conduct, and the Discipline Code are the load-bearing instruments the Chapter shall prioritize for early adoption; until each takes effect, existing Chapter practice on its subject continues under this Section.

Section 8. The Artifact Level. Below the four binding tiers sits the Artifact level, the lowest level of the Chapter's governance system. An Artifact is a non-binding operational document that carries out the work of a tier document, such as a log, register, form, tracking sheet, contact list, agenda, or plan. An Artifact binds no one on its own, draws its authority entirely from the tier document it implements, conforms upward to every tier document above it, and is corrected rather than followed if it ever conflicts with a tier document. It is not a binding tier, and naming it does not make it one.

Section 9. Motions and Resolutions.

(a) **Definition and Styling.** Alongside the hierarchy, the Chapter and its bodies act by motion. A motion is a proposal that a Meeting or another Chapter body decides by vote, made and decided as the parliamentary authority adopted under Article XIX provides. A motion in formal written form may be styled a Resolution, and styling it so does not change its effect under this Section.

(b) **Binding Force.** A motion binds to the extent of its terms when adopted and is an act of the body that adopts it, not an internal document within the meaning of Section 3.

(c) **Conformity.** A motion conforms to these bylaws and to every adopted Code, Rule, and Policy, and does not amend, suspend, or override any of them except by the procedure the tier of that instrument requires.

(d) **No Continuing Law.** No motion creates a continuing rule, procedure, or standard of the Chapter outside the four binding tiers, other than an instrument these bylaws expressly attach, such as the Motion on Transitional Provisions named in Article XXII, Section 4. A motion creates a rule, procedure, or standard within the meaning of this subsection when it governs conduct generally, and not when it directs or restrains a particular act or a particular course of conduct. A motion may direct or restrain a particular act or a particular course of conduct, including over time and until the motion is rescinded or spent.

(e) **Voidness.** A motion is void to the extent it conflicts with these bylaws, or with any adopted Code, Rule, or Policy otherwise than as subsection (c) permits, or purports to create a continuing rule, procedure, or standard contrary to subsection (d).

(f) **Not a Tier.** A motion is not a tier of the hierarchy, and styling one a Resolution does not make it a tier.

Article XIX. Parliamentary Authority and Nullity of Contrary Action

Section 1. Governing Authority. The parliamentary authority of the Chapter is the current edition of Robert's Rules of Order Newly Revised. The rules it contains govern the Chapter in all cases to which they are applicable and in which they are not inconsistent with the national documents, with these bylaws or any instrument attached to them, with any Code, Rule, or Policy, or with any special rule of order the Chapter adopts within the hierarchy of Article XVIII. Robert's Rules shall be enforced upon the request of any member. A Policy may vary parliamentary procedure only for meetings of the Steering Committee and for administrative operations within the scope of Article XVIII, Section 1(d), and not for Meetings of the Chapter.

Section 2. Nullity of Contrary Action. Any action of any officer, body, or member in contravention of these bylaws, of any Code, of any Rule, or of any Policy is null and void, except that the adoption of a Code, Rule, Policy, or motion that conflicts with a higher instrument is void only to the extent Article XVIII, Section 2 or Section 9(e) provides. Any action of any officer, body, or member in contravention of a motion adopted under Article XVIII, Section 9 is likewise null and void, to the extent the motion directs or restrains that officer, body, or member after the meeting at which the motion was adopted, and only so far as the adopting body had authority to bind that officer, body, or member.

Section 3. Determination of Nullity.

(a) **Self-Executing Nullity.** An action void under Section 2 is void from the outset, and a determination under this Section records that nullity rather than creating it. The absence of a

determination does not validate an action void under Section 2, and no officer, body, or member is required to await a determination before treating such an action as void.

(b) **Determination and Timing.** The Secretary determines and records in the governance records whether an action is null and void under Section 2, on the Secretary's own initiative or on the written request of any member in good standing, and states the grounds in writing. On a written request, the Secretary shall record a determination, or a written statement declining to make one with its grounds, within fourteen days of receipt, and a failure to act within that period is a refusal for the purposes of this Section. Where the action in question is the Secretary's own, is the action of a body in whose deliberation or vote on that action the Secretary took part, or is one in which the Secretary would be conflicted under the standards of the Conflict of Interest Code, or the office of Secretary is vacant, the Steward makes the determination. Where the Steward is disqualified on any of the same grounds or that office is vacant, any other officer not so disqualified makes it, and if no officer is qualified to act or no officer is in office, the question goes directly to the membership under subsection (d). An officer who determines in the Secretary's place under this subsection has the same duties and the same time to act.

(c) **Effect on the Person or Body Named.** A determination addresses only the legal effect of the action. It is not a finding of misconduct, is not discipline, and may not be cited as a ground for discipline under Article XII or for removal under Article XI unless the same conduct is separately charged under the procedure that Article requires. The Secretary shall promptly give written notice of a determination to any officer, body, or member it names, and shall record alongside it any written response that person or body submits.

(d) **Appeal to the Membership.** Any member in good standing may bring a determination, a refusal to make one, or the underlying question where no determination has been made, before the membership, which decides the question by majority vote. The question shall be placed on the agenda of the next General Meeting whose agenda notice has not yet been sent, without the petition required by Article VI, Section 2(a), and the Steering Committee may not decline to place it or defer it beyond that meeting. A decision of the membership under this subsection resolves the question, does not amend, suspend, or waive these bylaws or any Code, Rule, or Policy, and does not validate an action that any of them forbids.

(e) **Point of Order Preserved.** This Section does not limit the right of any member under Section 1 to raise a point of order at the meeting at which the action is taken.

Article XX. Amendments

Section 1. Amendment Process. A proposed amendment to these bylaws may be initiated at any time of year. A proposed amendment must be submitted in writing and endorsed by at least five members in good standing. The Secretary shall circulate the proposed amendment to the full

membership within thirty days of receipt, with at least thirty days written notice before a discussion meeting, which is the next General Meeting held after that notice period runs.

Section 2. Discussion Meeting. The discussion meeting is a General Meeting, or the discussion occurs as a noticed agenda item at a General Meeting, so that the remote-participation-by-right guarantee, the notice requirements, and the quorum rules of Article VI attach to it. The proposed amendment is debated at the discussion meeting, and no vote on the amendment is taken at that meeting.

Section 3. Two Approving Votes. After the discussion meeting, the proposed amendment is voted at two General Meetings as provided in this Section. Each approving vote is a heightened action under Article VI, Section 5(b), taken on at least fourteen days written notice to the membership naming the amendment to be voted, and the two approving votes must be on identical text. A General Meeting that is cancelled or that does not reach the higher quorum is disregarded wherever this Section counts meetings. The first approving vote is taken at the next General Meeting after the discussion meeting, and if it does not pass, the amendment does not proceed. The second approving vote is taken at either of the next two General Meetings after the meeting at which the first approving vote was taken, and if it is not taken at either of them, the amendment lapses. The Annual Convention is a General Meeting for this purpose and is one of the meetings at which an amendment vote may occur. A vote completed at a session recessed and reconvened under Article VI, Section 5(d)(4) is taken, for purposes of this Section, at the General Meeting that recessed, and any period under this Section runs from the day the vote is actually taken.

Section 4. Effective Date. An adopted amendment takes effect on the announcement of the result of the second approving vote, unless the amendment provides otherwise. An amendment that creates, renames, or modifies an elected position takes effect so that the position exists for any election held later at the same meeting as the second approving vote.

Section 5. Submission Requirements. The submission must include the full text of the proposed amendment, the specific Article and Section or Sections affected, the names of the endorsing members, and a brief statement of purpose.

Section 6. No Gatekeeping, and Secretary Technical Check.

(a) **No Steering Committee Review.** The Steering Committee may not review, screen, comment on, filter, gatekeep, block, delay, or modify any properly submitted amendment.

(b) **Technical Check.** Within fifteen days of receipt of a properly submitted amendment, the Secretary shall review it for cross-reference accuracy, internal consistency, and conflicts with other Articles of these bylaws or with state, federal, or National DSA rules. The review is technical only and may not address the substance, merit, or political content of the amendment.

(c) **Notice of Defects.** If the Secretary identifies a technical defect, the Secretary shall notify the proposing members in writing within the fifteen-day period and offer a reasonable opportunity

to correct it. The proposing members may accept any or none of the suggested corrections; if they decline, the amendment proceeds to circulation as originally submitted, with the Secretary's written notice of defects appended as a footnote.

(d) **No Authority to Block.** The Secretary may not refuse to circulate any properly submitted amendment.

Section 7. Floor Amendments.

(a) **Permitted Scope.** Germane floor amendments to the submitted proposal are permitted only at the first of the two voting meetings, and members may not introduce entirely new bylaws amendments from the floor. The second voting meeting votes the text carried forward from the first up or down, without further amendment. If the proposal is amended by a germane floor amendment at the first voting meeting, that amended text is the text carried forward, and the identical-text votes required by Section 3 are votes on it.

(b) **Germaneness.** A floor amendment must be germane to the submitted proposal. A floor amendment is germane if it modifies, narrows, or expands a provision within the same Article and Section that the submitted proposal addresses and is directly related to the subject matter of the submitted proposal. For a proposal that is not a bylaws amendment, a floor amendment is germane if it is directly related to the subject matter of the submitted proposal. The presiding officer rules on germaneness, subject to appeal to the body by majority vote of those present and voting.

Section 8. Reporting to National. Within thirty days of the effective date of any bylaws amendment, the Secretary shall submit the amended bylaws in their entirety to the National Office of DSA, as required by Article III, Section 2 of the national Bylaws. The thirty-day window is the Chapter's own implementing deadline.

Article XXI. Dissolution

Section 1. Vote Required. Before the membership votes on dissolution, the Steering Committee shall recommend dissolution or, because of a conflict of interest or other special circumstances, make no recommendation and state the basis, as the Tennessee Nonprofit Corporation Act requires. Dissolution then requires a heightened action at each of two consecutive General Meetings, on thirty days written notice each. A General Meeting that is cancelled or that does not reach the higher quorum is disregarded for the purpose of consecutiveness, as under Article XX, Section 3. The two approving votes must be on identical text, and the floor-amendment, germaneness, and identical-text rules of Article XX, Section 7 apply to this two-meeting process: a germane floor amendment to the dissolution proposal is permitted only at the first of the two meetings, and the second meeting votes the resulting text up or down without further amendment.

Section 2. Distribution of Assets. On dissolution, all assets of the Chapter, after payment of debts and liabilities, shall be distributed to the national Democratic Socialists of America, as required by Article III, Section 2 of the national Bylaws. Only if the national Democratic Socialists of America has dissolved or no longer exists shall the assets instead be distributed to one or more organizations exempt under section 501(c)(4) or section 501(c)(3) of the Internal Revenue Code, with purposes compatible with those of the Chapter, designated by the membership at the dissolving meeting.

Article XXII. General Provisions

Section 1. Continuity of Governance Instruments. Existing Chapter governance instruments continue in force as the named tier documents under Article XVIII until amended, re-adopted, or rescinded under these bylaws, subject to the savings and anti-rescission clause in Article XVIII, Section 7. The Secretary shall list each continuing instrument and its tier in the registries under Article XVIII, Section 5; an instrument addressing a subject reserved to a Code continues with the force of a Code until re-adopted or replaced under Article XVIII, and any dispute over an instrument's tier is decided by the membership under the conflict procedure of Article XVIII, Section 5.

Section 2. Severability. If any provision of these bylaws is held invalid or unenforceable by a court or other tribunal of competent jurisdiction, the remaining provisions continue in full force and effect, and the invalid or unenforceable provision is reformed only to the minimum extent necessary to make it valid and enforceable.

Section 3. Pending Matters. Proceedings and elections properly begun under the prior bylaws and pending on the effective date continue to completion under these bylaws. A proposed amendment to the prior bylaws pending on the effective date lapses, and may be resubmitted as a proposed amendment to these bylaws under Article XX.

Section 4. Transitional Provisions. The initial adoption of these bylaws, the transition from the prior bylaws, and the first elections held under these bylaws are governed by the Motion on Transitional Provisions, a standalone motion submitted and adopted with these bylaws by the same authority and at the same approving votes. On its passage the Motion attaches to these bylaws and carries the same force and precedence as a provision of these bylaws. Once the transition it governs is complete, the Motion is spent and is retired as it provides.